

Chand Miyan @ Chand v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · WRIT - C No. 38926 of 2019 · **Writ disposed; EE to pass speaking order; s.127 if aggrieved.**

HEADNOTE

Without quashing a recovery certificate on merits, the Allahabad High Court directed the consumer to appear before the Executive Engineer with objections already filed, required a speaking final order within four weeks, stayed coercive action for six weeks or until that disposal, and left any grievance against the final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the recovery citation.

FACTUAL SUMMARY

Chand Miyan challenged a Recovery Certificate dated 11 September 2019, seeking certiorari to quash it and mandamus restraining recovery. He alleged that the electricity authorities were taking coercive action without giving him an opportunity of hearing and without following the Uttar Pradesh Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and the electricity department and disposed of the writ with directions for a hearing before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after speaking final order

HOLDING

A writ challenging a recovery certificate on the plea of no hearing and non-compliance with the U.P. Electricity Supply Code, 2005, was disposed of without examining the citation on merits: the consumer was directed to appear before the Executive Engineer with objections already filed; the Engineer was to pass a speaking final order within four weeks; coercive action was stayed for six weeks or until that disposal, whichever was earlier; and any grievance against the final order was left to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear would revive the recovery citation automatically. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal After directing a speaking final order by the Executive Engineer on the consumer's objections, the Court left any further challenge to Section 127 rather than deciding the recovery citation on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 11.09.2019 AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine whether hearing had been given or whether the Supply Code had been followed; it directed a speaking final order and relegated further grievance to Section 127. ¶ 1